

23STCV31462 23STCV31462

County: los-angeles

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Case Number: 23STCV31462 Hearing Date: July 28, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

28, 2026 TRIAL DATE: October 26, 2026

CASE: Vanessa Marin v. Kellwood Company, LLC

CASE NO.: 23STCV31462

PLAINTIFF VANESSA MARIN'S MOTION FOR PROTECTIVE
ORDER AND MONETARY SANCTIONS

MOVING PARTY: Plaintiff Vanessa Marin

RESPONDING PARTY: Defendant

Kellwood Company, LLC

I. INTRODUCTION

This is an employment

action. On April 16, 2026, plaintiff

Vanessa Marin ("Plaintiff") appeared for deposition, which was conducted by Frank Seddigh, counsel for defendant Kellwood Company, LLC

("Defendant").

Plaintiff's counsel, Armen Zenjiryan, ultimately terminated the

deposition before its completion because of Mr. Seddigh's conduct.

On April 28, 2026, Plaintiff filed this motion for protective order. Plaintiff seeks an order prohibiting harassment, argument, speaking objections, and other improper conduct and imposing monetary sanctions against Defendant and/or Mr. Seddigh.

On July 15, 2026, Defendant filed an opposition. Defendant request sanctions against Plaintiff and her counsel.

On July 21, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. (Code Civ. Proc., § 2025.420(a).) The motion must be accompanied by a meet and confer declaration. (Id.)

The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. (Code Civ. Proc., § 2025.420(b).) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.420(h).) ~ ~ ~

III. DISCUSSION

After reviewing the filings in connection to this issue, the court denies the motion for two interrelated reasons. First, Plaintiff did not submit a declaration as required under Code of Civil Procedure section 2025.420(a) showing that she attempted to meet and confer prior to the filing of this motion. Second, Defendant sent a meet and confer letter on April 17, 2026 offering to complete the remainder of Plaintiff's deposition with defense counsel Alicia Veglia, and without Mr. Seddigh. However, Plaintiff's counsel did not respond to the letter. If Plaintiff had engaged in meet and confer efforts, Defense counsel's proposal may have obviated this motion.

Monetary Sanctions

Given the ruling, the court considers only Defendant's request for sanctions. After reviewing the unofficial transcript of Plaintiff's deposition, the court declines to impose sanctions against Plaintiff or her counsel. Mr. Seddigh harassed Plaintiff throughout her deposition and was improperly argumentative. Counsel's behavior would have been inappropriate in the presence of a judicial officer. Mr. Seddigh must conform his conduct with the State Bar of California Attorney Guidelines of Civility and Professionalism and Superior Court of California, County of Los Angeles Local Rules, Appendix 3.A, subd. (e).

IV. CONCLUSION

Due to Frank Seddigh's lack of civility demonstrated in the rough transcript of the deposition, the court orders Mr. Seddigh to read Superior Court of California, County of Los Angeles Local Rules, Appendix 3.A, subds. (d) and (e). Further, the court orders Mr. Seddigh to file a declaration with the Court indicating that he has read these rules carefully, that he understands the meaning of these rules, and that he will abide by the letter and spirit of these rules going forward. The court orders Mr. Seddigh to serve that declaration on opposing counsel. Mr. Seddigh has 15 days to file this declaration with the court and serve it on opposing counsel. Failure to do so will subject Mr. Seddigh to sanctions pursuant to Code of Civil Procedure section 177.5.

The motion for protective order is DENIED WITHOUT PREJUDICE.

The requests for monetary sanctions are DENIED.

Defendant to give notice, unless waived.

Dated: July 28, 2026

Brock T. Hammond

Judge of the Superior Court